

		pleaded estate expenses and liability; it does not infer estate injury merely from an impaired gift or from the use of the term “estate tax.” The ultimate allocation of particular taxes and expenses among the estate, the Trust, and individual beneficiaries remains to be established. Plaintiff must prove an injury belonging to the estate to recover in her representative capacity, and the same loss may not be recovered twice. The FAC’s allegations of estate injury are sufficient to withstand the grounds advanced in this demurrer. The demurrer to Plaintiff’s claim as personal representative is overruled. Defendants shall file and serve an answer within 10 days after service of notice of this ruling. Plaintiff shall give notice.
10.	2025-1498552 Villa vs. Coastal Capital Group LLC	Case Management Conference Defendant Brian Ballo’s Motion to Quash Service of Summons and First Amended Complaint is granted. Defendant Alexander Ballo’s Motion to Quash Service of Summons and First Amended Complaint is granted. Defendant Sapphire Escrow’s Motion to Quash Service of Summons and First Amended Complaint is granted. <u>Legal Standard</u> “A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of the summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc. § 418.10, subd. (a)(1).) “[N]o act by a party who makes a motion under this section, including filing an answer, demurrer, or motion to strike constitutes an appearance, unless the court denies the motion made under this section.” (Code Civ. Proc., § 418.10, subd. (e)(1); <i>Roy v. Superior Court</i> (2005) 127 Cal.App.4th 337, 345 [“Nothing could be clearer: a defendant may move to quash coupled with any other action without being deemed to have submitted to the court’s jurisdiction”] [emphasis in original].) When service of process is challenged by a motion to quash, plaintiff bears the burden of proving the facts necessary to establish valid

service. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413; *Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1160.) The Court resolves factual disputes concerning service by weighing the evidence presented.

Defendant Brian Ballo

Plaintiff filed a proof of service of summons claiming personal service of the summons and complaint on Brian Ballo on 2/12/26, at 5:05 PM, at 120 Vantis, Ste. 300, Aliso Viejo, by Raina Thorson (not a registered process server). (ROA 47.) Defendant contends the purported service should be quashed, because “the Proof of Service is *falsely signed under penalty of perjury by Raina Thorson.*” (ROA 53 [Mot. at p. 1, emphasis in original].) Specifically, Defendant contends that he was in Incline Village, Nevada, on the purported date and time of service, so he could not have been personally served with process on 2/12/26 in Aliso Viejo. (ROA 53 [Mot. at p. 2].) In addition to his sworn declaration, Brian Ballo proffers a confirmation of his Hyatt hotel reservation, a receipt for his Southwest Airlines flights, and a receipt from his Hertz car rental. (Brian Ballo Decl. at ¶¶ 2-6, Exhs. A-C.) The documents tend to support his argument.

The Court has considered the proof of service and defendant’s declaration and supporting documents. The Court credits defendant’s evidence that he was elsewhere at the stated time and finds that the asserted personal service did not occur. Plaintiff did not oppose the motion or submit additional evidence resolving that conflict. Plaintiff has not carried her burden of establishing valid service. The motion to quash service of the summons and first amended complaint is granted.

Defendant Alexander Ballo

Plaintiff filed a proof of service of summons claiming personal service of the summons and complaint on Alexander Ballo on 2/12/26, at 5:05 PM, at 120 Vantis, Ste. 300, Aliso Viejo, by Raina Thorson (not a registered process server). (ROA 48.) Defendant contends the purported service should be quashed, because the “the Proof of Service is *falsely signed under penalty of perjury by Raina Thorson.*” (ROA 54 [Mot. at p. 1, emphasis in original].) Specifically, Defendant contends that he was ice skating at Anaheim Ice in Anaheim at that time. (ROA 54 [Mot. at p. 2].) In addition to the sworn statements in his declaration, Alexander Ballo proffers a posting of the schedule for Anaheim Ice on 2/12/26, and a photo of him and his girlfriend taken while ice skating. Alexander Ballo also attests that he is a licensed process server and that he took and passed his exam on the morning of 2/12/26. (Alexander Ballo Decl. at ¶¶ 2-7, Exhs. A-D.) The documents tend to support his argument.

Although there is a rebuttable presumption that service was proper, the Court finds Defendant has rebutted that presumption. Moreover, Plaintiff did not oppose the motion or submit any evidence from the (unregistered) process server, Raina Thorson, to support the proof of service. As such, Plaintiff did not meet her burden of proving “the facts requisite to an effective service.” The motion to quash the service of the summons and FAC is granted.

Defendant Sapphire Escrow

On 3/4/26, Plaintiff filed a proof of service of summons reflecting personal service of summons, on Escrow, on 2/23/26 at “12:01” at 17100 Pioneer Blvd., Ste. 110, in Artesia, by “Blanca E. Olimón” (who is not a registered process server). (ROA 50.) Defendant moves to quash the service of summons on the grounds that the proof of service “fails to identify any individual by name who accepted service on behalf of Sapphire Escrow, nor does it establish that the unidentified person was authorized to accept service in any capacity recognized by statute” and “fails to state the person’s title or the capacity in which the person is served.” (ROA 72 [Mot. at p. 2].) Defendant’s arguments have merit.

Plaintiff does not dispute that Defendant is a business entity, and that it was identified as such in the proof of service. Service on business entities is generally accomplished through service on the person designated as agent for service of process, or a person who serves as a manager or officer. (See Code Civ. Proc., §§ 416.10 [service on corporations]; 416.40 [service on unincorporated associations].) The proof of service must “recite or in other manner show the name of the person to whom a copy of the summons and of the complaint were delivered, and, if appropriate, the person’s title or the capacity in which the person is served...” (Code Civ. Proc., § 417.10, subd. (a).) The proof of service for Sapphire Escrow does not comply with CCP section 417.10 because, despite the instruction to “specify name and relationship to the party” when the person is “served on behalf of an entity,” the proof only states that “Sapphire Escrow” was served. It does not indicate the name of the person to whom the summons was purportedly delivered, or that person’s title or capacity under which he or she was qualified to accept service.

The proof of service does not establish delivery to a person authorized to accept service for Sapphire Escrow. Plaintiff did not oppose the motion or submit additional evidence establishing valid service. Sapphire Escrow’s motion to quash service of the summons and first amended complaint is granted.

Defendant Sapphire Escrow shall give notice of the rulings.

Motion for Vexatious Litigant Designation and Bond Requirement
Defendant Alexander Ballo’s (“Defendant”) Motion For Orders Designating Plaintiff Elizabeth Villa (“Plaintiff”) a “Vexatious Litigant” and Requiring Plaintiff to Post a \$25,000 Bond is denied.

Defendant’s request for judicial notice is granted. (Evid. Code, § 452, subd. (d).)

Defendant contends Plaintiff is a vexatious litigant as defined by CCP section 391, subdivision (b)(3), because she has “brought a series of Motions in both this [case, the] Wrongful Foreclosure Case, the Unlawful Detainer Case, the Civil Harassment Case I and Civil Harassment Case II, all for the ulterior purpose of delaying her eviction from 26582 San Torini Rd., Mission Viejo, CA 92692.” (Mot. at pp. 5-6.)

“The vexatious litigant statutes (§§ 391–391.7) are designed to curb misuse of the court system by those persistent and obsessive litigants who, repeatedly litigating the same issues through groundless actions, waste the time and resources of the court system and other litigants.” (*Shalant v. Girardi* (2011) 51 Cal.4th 1164, 1169.) As relevant here, Code of Civil Procedure section 391(b)(3) concerns a self-represented litigant who repeatedly files unmeritorious papers, conducts unnecessary discovery, or employs frivolous tactics or tactics solely intended to cause unnecessary delay. “Litigation” includes any civil action or proceeding commenced, maintained, or pending in a state or federal court. (Code Civ. Proc., § 391, subds. (a), (b)(3).)

“When considering a motion to declare a litigant vexatious, the court must weigh the evidence to decide whether the litigant is vexatious based on the statutory criteria and whether the litigant has a reasonable probability of prevailing.” (*Goodrich v. Sierra Vista Regional Medical Center* (2016) 246 Cal.App.4th 1260, 1265.) Evidence that a litigant is a frequent plaintiff or defendant alone is insufficient to support a vexatious litigant designation. (*Morton v. Wagner* (2007) 156 Cal.App.4th 963, 969.)

The Court has reviewed the records of the unlawful detainer and civil harassment proceedings. Although plaintiff did not prevail in those proceedings, the records do not establish repeated unmeritorious filings, unnecessary discovery, or tactics that were frivolous or solely intended to cause unnecessary delay. The adverse outcomes alone do not establish that plaintiff is a vexatious litigant under section 391(b)(3).

In this case, Plaintiff has filed an unsuccessful ex parte application for “immediate relief due to illegal lockout, utility shutoff and

	harassment” (ROA 7), and an “ex parte” reconsideration of the order denying the ex parte (ROA 16). The Court denied the first application “WITHOUT PREJUDICE” because Plaintiff failed to comply with the “notice provisions of the California Rules of Court.” (ROA 10.) The Court denied the second application “for reconsideration,” because it was “presently non-justiciable,” as “Plaintiff’s remedy lies in contesting the very pending unlawful detainer proceedings which the evidence suggests is imminent.” (ROA 21.) Considering the identified filings and their circumstances together, the Court finds that defendant has not established the pattern of conduct required by section 391(b)(3). The motion is denied. Moving defendant shall give notice of the ruling.
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